

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

DIP SHIPPING COMPANY, LLC, *REVOCATION OF OCEAN TRANSPORTATION INTERMEDIARY LICENSE NO. 018752.*

DOCKET NO. 20-04

SUR-REPLY BY DIP SHIPPING COMPANY, LLC IN SUPPORT OF THE MOTION OF THE UNITED STATES DEPARTMENT OF JUSTICE, ANTITRUST DIVISION, TO FILE A SUBMISSION AS AMICUS CURIAE

As set forth by Chief Administrative Law Judge Erin M. Wirth in her May 22, 2020 Order on Motion to File A Submission as *Amicus Curiae* and Request for Hearing, Dip Shipping Company, LLC hereby files this Sur-Reply, and states in support thereof:

1. On May 21, 2020, the U.S. Department of Justice, Antitrust Division, filed its Motion of the United States Department of Justice, Antitrust Division, to File a Submission as Amicus Curiae.
2. On May 22, 2020, the Chief Administrative Law Judge issued her Order on Motion to File a Submission as Amicus Curiae and Request for Hearing.
3. On May 10, 2020, the Bureau of Enforcement of the Federal Maritime Commission (FMC) filed its Reply Brief of the Bureau of Enforcement, and on pages 13-14 argued that the DOJ's Amicus Curiae Submission should not be considered because there is no specific regulation in 46 CFR Part 502 allowing for amicus curiae submissions.
4. Although the Federal Rules of Civil Procedure do not address amicus curiae participation in district courts, district courts possess the inherent authority to accept amicus briefs. In re Bayshore Truck Sales, Inc., 471 F. 3d, 1233, 1249 n. 34 (11th Cir. 2006).
5. Rule 29 of the Federal Rules of Appellate Procedure explicitly allow for the submission of briefs of an amicus curiae, as follows, in relevant part:

Rule 29. Brief of an Amicus Curiae

(a) DURING INITIAL CONSIDERATION OF A CASE ON THE MERITS.

(1) Applicability. This Rule 29(a) governs amicus filings during a court's initial consideration of a case on the merits.

(2) When Permitted. The United States or its officer or agency or a state may file an amicus brief without the consent of the parties or leave of court. Any other amicus curiae may file a brief only by leave of court or if the brief states that all parties have consented to its filing, but a court of appeals may prohibit the filing of or may strike an amicus brief that would result in a judge's disqualification.

(3) Motion for Leave to File. The motion must be accompanied by the proposed brief and state:

(A) the movant's interest; and

(B) the reason why an amicus brief is desirable and why the matters asserted are relevant to the disposition of the case.

6. Dip Shipping Company, Inc. has repeatedly requested the opportunity to engage in discovery, including of the DOJ attorneys in the Antitrust Division who were involved in the criminal prosecution of Roberto Dip and Dip Shipping Company, LLC.

7. Such requests by Dip Shipping Company, LLC have repeatedly been denied.

8. The DOJ was not obligated to submit an amicus curiae in this proceeding, but did so voluntarily.

9. The Rules of the FMC would seem to encourage such an amicus curiae submission as stated below, in relevant part:

46 CFR § 502.1 Scope of rules in this part.

The rules in this part govern procedure before the Federal Maritime Commission, hereinafter referred to as the “Commission,” under the Merchant Marine Act, 1920, Merchant Marine Act, 1936, Shipping Act of 1984, as amended by the Ocean Shipping Reform Act of 1998, Administrative Procedure Act, and related acts, except that subpart R of this part does not apply to proceedings subject to sections 7 and 8 of the Administrative Procedure Act, which are to be governed only by subparts A to Q inclusive, of this part. They shall be construed to secure the just, speedy, and inexpensive determination of every proceeding....

It is the “just” and “speedy and “inexpensive” determination that would favor the inclusion of such an amicus curiae, as especially compared to normal discovery under the Federal Rules of Civil Procedure.

10. As cited by the DOJ submission, it is “likely to assist the Commission in its consideration of this matter” with citation to 46 CFR 502.68c(ii).

11. The DOJ also stated, at page 3, “Further, the Division’s limited intervention will not unduly delay or expand the scope of the proceeding, but it will assist the Commission in compiling a more complete – and therefore more sound – record on which to base its decision.” Such a statement appears to support the “just, speedy, and inexpensive determination” cited above at 46 CFR 502.1.

12. The Commission’s own regulation makes it clear that the Federal Rules of Civil Procedure will be followed as guidance. It states:

46 CFR § 502.12 Applicability of Federal Rules of Civil Procedure.

In proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice. [Rule 12.]

13. The approval of the Motion of the United States Department of Justice, Antitrust Division, to File a Submission as Amicus Curiae will assist in determining whether Dip Shipping Company LLC is qualified to render intermediary services.

14. Dip Shipping Company, LLC, renews its request to conduct limited discovery with written and/or telephonic depositions of the FMC's Clifford Johnston who provided a Declaration to the Commission's Reply Brief of the Bureau of Enforcement, as well as the DOJ attorneys identified in the U.S. Department of Justice, Antitrust Division, filed its Motion of the United States Department of Justice, Antitrust Division, to File a Submission as Amicus Curiae, plus that of criminal defense counsel Joel Denaro.

WHEREFORE, based upon the preceding, Dip Shipping Company, LLC requests that the Chief ALJ issue an Order approving the Motion of the United States Department of Justice, Antitrust Division, to File a Submission as Amicus Curiae

Respectfully submitted,



Peter A. Quinter, Shareholder
Florida Bar Board Certified in
International Law

CERTIFICATE OF SERVICE

I hereby certify that on 19th day of June 2020, a copy of the foregoing Response by Licensee has been served via email to btrogdon@fmc.gov and jberestove@fmc.gov upon Benjamin K. Trogon, Director, Bureau of Enforcement, and Julie L. Berestove, Trial Attorney, Federal Maritime Commission, 800 North Capitol Street, NW, Washington, D.C. 20573.

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